

7. 9:00 AM CASE NUMBER: C25-02614
CASE NAME: D&A TRANS, INC., VS. BMW OF NORTH AMERICA, LLC,
***HEARING ON MOTION FOR DISCOVERY COMPEL PLAINTIFF D&A TRANS, INC.'S DEPOSITION**
FILED BY: BMW OF NORTH AMERICA, LLC,
TENTATIVE RULING:

The deposition has been taken on 4/8/26. Plaintiff's attorney apparently failed/refused to confirm dates for plaintiff's deposition until defendant's attorney filed the motion to compel herein; thus the time spent on filing the motion appears to have been the necessary "motivating factor" to complete the deposition. Defendant's attorney's request for attorney's fees in the amount of \$1,600 is granted and shall be paid by defendant and/or his attorney within 30 days from the date of this hearing.

8. 9:00 AM CASE NUMBER: C25-03405
CASE NAME: PATRICIA WELLER VS. THEODORE SABERI
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: RIZVI, DOLLY
TENTATIVE RULING:

The Demurrer is moot since Plaintiff filed her First Amended Complaint on 3/30/26.

9. 9:00 AM CASE NUMBER: C26-00197
CASE NAME: JEFFREY JOSEPH HUMBLE VS. RALPH WHITE , III
HEARING IN RE: MINORS COMPROMISE CLAIM
FILED BY:
TENTATIVE RULING:

The Minor's Compromise is approved on the terms and conditions set forth in the Petition for Approval of the Claim and the appointment of his Guardian ad Litem. He seems to have made a good recovery from his injuries and the net proceeds from the settlement will be used to purchase an annuity for his benefit and/or placed in a blocked account for his benefit when he reaches majority.

10. 9:00 AM CASE NUMBER: C26-00251
CASE NAME: JAMES BREEN VS. LAW OFFICES OF JONATHAN D. LAROSE
***HEARING ON MOTION IN RE: TO STRIKE JAMES BREEN'S COMPLAINT PURSUANT TO CCP 425.16**
FILED BY: LAW OFFICES OF JONATHAN D. LAROSE
TENTATIVE RULING:

Before the Court is Defendants Law Office of Jonathan D. Larose, Johnathan D. Larose, and Kristine Griffith's ("Moving Defendants") Special Motion to Strike Complaint pursuant to Code of Civil Procedure section 425.16. Mr. Larose and Ms. Griffith are attorneys that work at the Law Office of

Jonathan D. Larose.

Moving Defendants' Request for Judicial Notice is **granted**. (Evid. Code § 452(d).)

On April 17, Plaintiff filed a "Supplemental Response to Defendants' Reply." There is no provision in the Code of Civil Procedure, generally, for the filing of a 'supplemental response' or 'sur-reply' (no matter how titled). The decision whether to consider such papers is within the discretion of the trial court. (*Guimei v. General Electric Co.* (2009) 172 Cal.App.4th 689, 704.) The Court declines to exercise such discretion and will not consider Plaintiff's Supplemental Response as he failed to seek leave of Court to file such a document.

Procedural Background

This matter pertains to the Moving Defendants actions in representing Plaintiff James Breen's wife (Heather Breen) during the couple's underlying dissolution and family law action – Contra Costa Superior Court case D23-04556 (the "Underlying Action"). The Underlying Action included litigation of child custody and visitation relating to the Breen's minor child.

The Complaint outlines several actions by the Moving Defendants made during the Underlying Action which Plaintiff claims were improper and factually inaccurate. For example, it is alleged that at a hearing on March 11, 2024, Defendant Griffith orally asserted that Heather Breen "had fled with the child due to fear for her safety and the safety of the child, effectively accusing Plaintiff of domestic abuse and child endangerment." (¶ 34.) The Complaint alleges Defendant Griffith knew this to be false at the time. (¶ 35.) All the allegations relate to the actions of the Moving Defendants in representing Heather Breen during the Underlying Action.

Based on the allegations in the Complaint, Plaintiff asserts two causes of action: (1) intentional infliction of emotional distress, and (2) civil conspiracy. The Moving Defendants move to strike the Complaint pursuant to Code of Civil Procedure section 425.16, California's 'anti-SLAPP' statute.

Analysis

In *Baral v. Schnitt* (2016) 1 Cal.5th 376, the California Supreme Court explained the two-step approach courts take in ruling on an anti-SLAPP motion:

First, the defendant must establish that the challenged claim arises from activity protected by section 425.16. [citation] If the defendant makes the required showing, then burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success. (*Id.* at 384.)

"[T]he only thing the defendant needs to establish to invoke the [potential] protection of the SLAPP statute is that the challenged lawsuit arose from an act on the part of the defendant in furtherance of her right of petition or free speech." (*Equilon Enterprises v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, 61 quoting *Fox Searchlight Pictures, Inc. v. Paladino* (2001) 89 Cal.App.4th 294, 307.) To do so, the defendant must show that the "conduct by which plaintiff claims to have been injured falls within one of the four categories described in subdivision (e)" of section 425.16. (*Id.* at 66.)

Subdivision (e) of section 425.16 states, in pertinent part:

[An] 'act in furtherance of a person's right of petition or free speech under the United States or California Constitution in connection with a public issue' includes: (1) any

written or oral statement or writing made before a ... judicial proceeding, or any other official proceeding authorized by law..." (Code Civ. Proc. § 425.16(e).)

If the statements or actions at issue were made before or in connection with a judicial proceeding, there is no separate requirement that the statements or actions be made in connection with a 'public issue.' (*Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1118.)

Protected Activity

Plaintiff's Complaint names the Law Office of Jonathan D. Larose and two of its individual attorneys – Mr. Larose and Ms. Griffith – as defendants based on their actions in representing Heather Breen in the Underlying Action.

Protected activity covered by section 425.16 includes a "statement or writing made before a ... judicial proceeding." (Code Civ. Proc. § 425.16(e).) It also includes "any written or oral statement made in connection with an issue under consideration or review by a ... judicial body." (*Ibid.*) A "statement is 'in connection with' litigation under section 425.16, subdivision (e)(2) if it relates to the substantive issues in the litigation and is directed to persons having some interest in the litigation." (*Neville v. Chudacoff* (2008) 160 Cal.App.4th 1255, 1266.) This also includes "qualifying acts committed by attorneys in representing clients in litigation." (*Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1056.)

"The anti-SLAPP statute's definitional focus is not the form of the plaintiff's causes of action but, rather, the defendant's *activity* that gives rise to his or her asserted liability – and whether that activity constitutes protected speech or petitioning." (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 92.) The statute does not "require that a defendant moving to strike under section 425.16 demonstrate that its protected statements or writing were made *on its own behalf* (rather than, for example, on behalf of its clients or the general public.)" (*Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1116.)

All the allegations in the Complaint relate to statements made in, or litigation activities related to, the Underlying Action. As such, Defendants have met their burden to "establish that the challenged claim arises from activity protected by section 425.16." (*Baral, supra*, 1 Cal.5th at 384.) As the activity related to statements made in a judicial proceeding, there is no need to show that it was also made in connection with a 'public issue.' (*Briggs*, 19 Cal.4th at 1118.)

Illegality exception

Plaintiff appears to argue that Moving Defendants' actions were so egregious that they should not be protected by the anti-SLAPP statute. The California Supreme Court has found section 425.16, "by its express terms, does not apply to any activity that can conceivably be characterized as being 'in furtherance' of a defendant's protected speech or petition rights if, as a matter of law, that activity was illegal and by reason of the illegality not constitutionally protected." (*Flatley v. Mauro* (2006) 39 Cal.4th 299, 316.) "In such a narrow circumstance, where either the defendant concedes the illegality of its conduct or the illegality is conclusively shown by the evidence, the motion must be denied." (*Ibid.*)

There is no evidence, much less "conclusive" evidence that the Moving Defendant's actions are criminal in nature. All the allegations relate to advocacy on behalf of a client during litigation. Even if the actions described could be considered a violation of an attorney's ethical duties, such violations

are not ‘criminal activity.’ (See e.g. *Fremont Reorganizing Corp. v. Faigin* (2011) 198 Cal.App.4th 1153, 1169.)

Probability of Success

As Defendants met their initial burden, the burden shifts to Plaintiffs to “demonstrate the merit of the claim by establishing a probability of success.” (*Baral, supra*, 1 Cal.5th at 384.) “To show a probability of prevailing for purposes of section 425.16, a plaintiff must ‘make a prima facie showing of facts which would, if proved at trial, support a judgment in plaintiff’s favor.’” (*ComputerXpress, Inc. v. Jackson* (2001) 93 Cal.App.4th 993, 1010, internal quotation marks omitted.)

To do this, “a plaintiff seeking to demonstrate the merit of the claim ‘may not rely solely on its complaint, even if verified; instead, its proof must be made upon competent admissible evidence.’” (*Sweetwater Union High School Dist. v. Gilbane Building Co.* (2019) 6 Cal.5th 931, 941 (“*Sweetwater*”) quoting *San Diegans for Open Government v. San Diego State University Research Foundation* (2017) 13 Cal.App.5th 76, 95.)

The anti-SLAPP statute describes what evidence a court may consider at the second step. “It provides that ‘[i]n making its determination, the court shall consider the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.’” (CCP §425.16(b)(2).) In lieu of an affidavit, declarations are allowed. (*Sweetwater, supra*, 6 Cal.5th at 941.)

While Plaintiff provides a declaration and submits several exhibits, he fails to explain how these documents relate to the causes of action alleged in his complaint. In fact, there is no legal discussion at all regarding his causes of action, the elements thereof, or the connection of any evidence to those elements. While Plaintiff cites to the evidence he submits, he fails to provide any analysis or “tie the evidence to any element of any cause of action alleged in [his] complaint. [This is] a requirement for an anti-SLAPP motion which involves a ‘summary-judgment-like procedure.’” (*MMM Holdings, Inc. v. Reich* 2018) 21 Cal.App.5th 167, 186.)

Accordingly, Plaintiff has failed to meet his burden to show that he is likely to prevail on his claims. An additional reason showing Plaintiff is not likely to succeed relates to Defendant’s arguments relating to the litigation privilege, discussed below.

Litigation Privilege

Civil Code section 47(b) sets for the so-called ‘litigation privilege,’ which broadly protects communications made during judicial proceedings. It defines a “privileged publication” to include one made in any “judicial proceeding.” That section “has been given broad application,” and is now “held applicable to any communication, whether or not it amounts to a publication [citations] and all torts except malicious prosecution.” (*Silberg v. Anderson* (1990) 50 Cal.3d 205, 211-12.) It applies to “any publication required or permitted by law in the course of a judicial proceeding to achieve the objects of the litigation, even though the publication is made outside the courtroom and no function of the court or its officers is involved.” (*Id.* at 212.)

The publication “need not be pertinent, relevant, or material in a technical sense to any issue in the action; it need only have some connection or relation to the proceedings.” (*Portman v. George McDonald Law Corp.* (1979) 99 Cal.App.3d 988, 991.) The privilege applies even where the testimony “is allegedly perjured and malicious.” (*Id.* at 990.) “The resulting lack of any really effective civil

remedy against perjurers is simply part of the price that is paid for witnesses who are free from intimidation by the possibility of civil liability for what they say.” (*Ibid.*)

“The usual formulation is that the privilege applies to any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) that have some connection or logical relation to the action.” (*Silberg*, *supra*, 50 Cal.3d at 212.)

As outlined by Defendants, all of Plaintiff’s claims relate to privileged publications made by Moving Defendants. First, each of the statements was made during the Underlying Action – i.e. during a judicial proceeding. Second, they were made by ‘other participants authorized by law’ in that they were made by Heather Breen’s counsel of record during that proceeding. Third, all the alleged statements relate to the Moving Party’s representation of Heather Breen and were related to attempting to achieve their goals therein. Finally, each of the alleged communications had some connection to the Underlying Action.

As all the conduct alleged is privileged under section 47(b), there is no way Plaintiff can establish a “probability of success” on the merits. Accordingly, the Court need not address the other arguments made by Defendant showing that Plaintiff has not shown and cannot show that he is likely to prevail.

Attorneys’ Fees

A “prevailing defendant on a special motion to strike shall be entitled to recover that defendant’s attorney’s fees and costs.” (Code Civ. Proc. § 425.16(c).) The award of attorney fees is “mandatory.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.) As Defendants are the prevailing parties on this anti-SLAPP motion, they are entitled to their attorney fees. As noted by Defendants, they will file a separate noticed motion for those fees. The Court will address the propriety of the amount of fees at that time.

Conclusion

Based on the above, Moving Defendants’ Special Motion to Strike is **granted**.

11. 9:00 AM CASE NUMBER: L24-04434

CASE NAME: ANHEUSER-BUSCH, LLC VS. CHRISTINA PABST

***MOTION/PETITION TO COMPEL ARBITRATION MOTION TO COMPEL INDIVIDUAL ARB AND DISMISS OR STAY CROSS COMP FILED BY PLN ON 12/19/25**

FILED BY: ANHEUSER-BUSCH, LLC

TENTATIVE RULING:

Plaintiff Anheuser’s Motion to Compel its former employee Christina Pabst to submit her claims to **individual** arbitration is granted. Ms. Pabst’s Cross-Complaint shall otherwise be stayed in its entirety to allow the arbitration to proceed to completion.

When Ms. Pabst applied for employment with Anheuser, she agreed on her application that resolution of any claims between her and Anheuser would be subject to final and binding arbitration and that arbitration would be the exclusive method she and Anheuser would have for final and binding resolution of claims covered by the Company’s Dispute Resolution Program. When she was